



Income Tax Department

Ministry of Finance, Government of India

Circumstances and conditions for purposes of Schedule III [Table: Sl. No. 16] to the Act.

281. (1) For the purposes of Schedule III (Table: Sl. No. 16) to the Act, the circumstances of death of a member of the armed forces (including para-military forces) of the Union in the course of operational duties shall be the following:—

- (a) acts of violence or kidnapping or attacks by terrorists or anti-social elements; or
- (b) action against extremists or anti-social elements; or
- (c) enemy action in international war; or
- (d) action during deployment with a peace keeping mission abroad; or
- (e) border skirmishes; or
- (f) laying or clearance of mines including enemy mines including mine sweeping operations; or
- (g) explosions of mines while laying operationally oriented mine-fields or lifting or negotiating mine-fields laid by the enemy or own forces in operational areas near international borders or the line of control; or
- (h) in the aid of civil power in dealing with natural calamities and rescue operations; and
- (i) in the aid of civil power in quelling agitation or riots or revolts by demonstrators.

(2) The Head of the Department, where the deceased member of the armed forces (including para-military forces) last served, or the service headquarters, shall certify that the death of such member occurred in the course of operational duties in circumstances as mentioned in sub-rule (1).

